

**Form 59.45**

20

No.

Supreme Court of Nova Scotia  
(Family Division)

Between: [complete heading as required by Rule 82 - Administration of Civil Proceedings]

[full name, including middle name(s)]

Applicant

and

[full name, including middle name(s)]

Respondent

**Application for Divorce by Agreement**

**To:** [name of respondent]

**The applicant requests a divorce**

The applicant applies to the court for a divorce order [and a corollary relief order] consistent with the written agreement made between you and the applicant on \_\_\_\_\_, 20\_\_\_\_, which settles all issues concerning the dissolution of the parties' marriage and corollary relief.

Accordingly, the applicant requests that this application be referred directly to a judge without opportunity for a hearing.

**If you disagree**

You must notify a court officer in writing immediately and no more than ten days after the day this application is delivered to you, if you disagree with any statement made in this application.

**Motion**

The applicant moves for a divorce order and for a corollary relief order consistent with the written agreement.

**Information and evidence in support**

The evidence in support of the motion is as follows:

- ☐ marriage certificate [if marriage certificate cannot be produced, an affidavit must be filed proving the marriage and providing sufficient reasons for not proving it by certificate]
- ☐ the applicant's sworn affidavit filed on \_\_\_\_\_, 20\_\_\_\_ proving the required facts and claims, and attaching the following as exhibits to the affidavit:
  - ☐ written agreement between the parties
  - ☐ respondent's written consent to this application proceeding without an opportunity for a hearing or contest, which is provided in [the written agreement./a separate document.]

- ☐ designated address of the respondent signed by the respondent, which is provided in *the written agreement./a separate document.*]

[May delete any of the following that do not apply]

- ☐ waiver of financial statements filed on \_\_\_\_\_, 20
- ☐ written undertaking not to appeal the divorce order filed on \_\_\_\_\_, 20
- ☐ applicant's parenting statement filed on \_\_\_\_\_, 20
- ☐ applicant's statement of income filed on \_\_\_\_\_, 20
- ☐ respondent's statement of income filed on \_\_\_\_\_, 20
- ☐ applicant's statement of special or extraordinary expenses filed on \_\_\_\_\_, 20
- ☐ respondent's statement of special or extraordinary expenses filed on \_\_\_\_\_, 20
- ☐ applicant's statement of expenses filed on \_\_\_\_\_, 20
- ☐ respondent's statement of expenses filed on \_\_\_\_\_, 20
- ☐ applicant's statement of undue hardship circumstances filed on \_\_\_\_\_, 20
- ☐ respondent's statement of undue hardship circumstances filed on \_\_\_\_\_, 20
  
- ☐ applicant's statement of property filed on \_\_\_\_\_, 20
- ☐ respondent's statement of property filed on \_\_\_\_\_, 20
- ☐ draft divorce order
- ☐ draft corollary relief order
- ☐ two stamped envelopes with the designated address of the applicant making this motion and two stamped envelopes with the designated address of the respondent
- ☐ other required statements or documents [specify]

**Non-parties**

Are there other persons *with* contact time, interaction, or parenting time with the child/children?

- ☐ Yes, details in the Affidavit.
- ☐ No

Are there other persons *looking for* contact time, interaction, or parenting time with the child/children?

- ☐ Yes, details in the Affidavit.
- ☐ No

**Contact information**

The applicant designates the following address:

Documents delivered to this address are considered received by the applicant on delivery.

**Delivery to respondent**

You will immediately be notified of this application by immediate delivery of a copy of this notice to the address you designated in the agreement.

**Declaration & certificate**

I declare that the statements in this application for divorce are true to the best of my personal knowledge, or information given to me that I believe to be true, and I certify that I am aware of my duties under sections 7.1 through 7.5 of the *Divorce Act*, which include:

1. I must exercise any parenting time or decision-making responsibility that I have with respect to any children of the marriage in a manner that is consistent with the best interests of the child/children;
2. To the best of my ability, I must protect the child/children of the marriage from conflict arising from this proceeding;
3. To the extent that it is appropriate to do so, I must try to resolve the issues in this proceeding through a family dispute resolution process;
4. I must provide complete, accurate and up-to-date information as required under the *Divorce Act*, as part of this proceeding and under a Court Order; and,
5. If I am subject to an order made under the *Divorce Act*, I must follow and comply with the order until it is no longer in effect.

Signed \_\_\_\_\_, 20\_\_\_\_

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Signature of applicant  
Print name:

**Counsel's certificate** [delete if not applicable]

I, counsel for the applicant, certify that I have complied with the requirements of section 7.7 of the *Divorce Act*.

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Signature of counsel  
Print name:

**Court officer's certificate**

I certify that this application for divorce by agreement was filed with the court on \_\_\_\_\_, 20\_\_\_\_.

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Court Officer